FERNANDEZ, an individual v THE RESOURCE CONNECTION, et al

24CV47263

PLAINTIFF'S MOTION FOR FINAL APPROVAL OF CLASS ACTION SETTLEMENT

Faviola Lizeth Fernandez ("Plaintiff") as the representative plaintiff, filed this class action lawsuit against The Resource Connection of Amador and Calaveras Counties, Inc. and The Resource Connection ("Defendants"). Plaintiff's First Amended Complaint ("FAC") alleges causes of action for wage and hour violations, including failure to pay overtime wages, wage statement violations, waiting time penalties and unfair competition. Plaintiff seeks penalties and damages under the Labor Code, Business and Professional Code, and the Private Attorney General's Act ("PAGA").

On May 9, 2025, this Court granted preliminary approval of a settlement between the parties ("Settlement.") Plaintiff has now filed a Motion for Final Approval of Class Action Settlement. The motion is unopposed.

The Motion does not comply with Local Rule 3.3.7 but in the interests of judicial efficiency, the Court will consider the Motion. Plaintiff's counsel is cautioned to take note of this local rule for future filings.

I. Legal Standard

Generally, "questions about whether a [class action] settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc*. (2001) 91 Cal.App.4th 224, 234-235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc*. (2018) 4 Cal.5th 260.) In determining whether a class settlement is fair, adequate and reasonable, the trial court should consider relevant factors, such as the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction of the class members to the proposed settlement. (*Wershba*, supra, 91 Cal.App.4th at 244-245.) The Court must consider whether the proposed settlement is not the product of fraud or collusion and that the settlement, as a whole, is fair and reasonable. (*Id.* at 245.) However, " 'a presumption of fairness exists where: (1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.'" (*Ibid* [citation omitted].)

PAGA Labor Code section 2699, subdivision (s)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" PAGA. The court's review "ensur[es] that any negotiated resolution is fair to those affected." (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.)

II. Discussion

The Agreement defines the "Class" as "all persons employed by Defendants in California and classified as a nonexempt, hourly employee who worked for Defendants during the Class Period." (Agreement §1.5.) The "Class Period" is defined as the time between February 22, 2020 to January 29, 2025. (Id. §1.12.) Additionally, the "PAGA Pay Period" means "any Pay Period during which an Aggrieved Employee worked for Defendants for at least one day during the PAGA Period." (Id. § 1.30.) An "Aggrieved Employee" is defined as a person employed by Defendants in California and classified as a non-exempt, hourly employee who worked for Defendants during the PAGA Period." (Id. §1.4.)

The Court conditionally certified the Class as part of the settlement process.

There are 226 Settlement Class members (Declaration of Natalie Haritoonian ("Haritoonian Decl.") ¶ 10.) Plaintiff and Defendant have agreed to settle the class claims for $385,000.00 in exchange for a release of the claims at issue in this litigation. In the Motion, Plaintiff provides an explanation of the Settlement terms, the results of the Notice provided to the Class Members, and a description of the distribution of the $385,000.00 Settlement Fund.

The Net Settlement Amount ("NSA") is estimated at $200,166,67. (McNamee Decl. ¶ 15.) The estimated average recovery for Class Members is $885.69. (Declaration of Ryan McNamee ("McNamee Decl.") ¶ 16.) Additionally, the 179 Aggrieved Employees who were employed during the PAGA period will receive a portion of the $10,000 PAGA amount for an average individual PAGA payment of $664.60. (Id. ¶¶ 17, 18.)

Class Members were permitted to “opt out” if they did not want to participate in the Settlement. There were no Class Members who chose to opt out or dispute the Settlement, resulting in 100% participation. (McNamee Decl. ¶14.)

An uncashed Settlement check will expire after 180 days and the parties agree that all uncashed checks will be distributed to the Controller of the State of California to be held pursuant to the Unclaimed Property Law, in the name of, and for the benefit, of the individual who did not cash their check. (Agreement at § 4.4.3.)

The Motion seeks approval of the following: 1) up to $128,333.33 for the Class Counsel Fees Payment; (2) $17,664.35 for the Class Counsel Litigation Expenses Payment; (3) $10,000.00 for the Class Representative Service Payment; (4) $6,500.00 for the Administration Expenses Payment; (5) $15,000.00 to the LWDA PAGA Payment; and (6) $5,000.00 to the Aggrieved Employees for the Individual PAGA Payment.

Apex Class Action, LLC was approved as the Settlement Administrator. Apex reports that notice packets were mailed to the 226 Class Members on June 3, 2025 via U.S. first class mail. (McNamee Decl. ¶ 7.) Class Members had until August 2, 2025 to opt-out or submit a dispute. (*Id.* ¶ 11-13.) As of August 27, 2025, Apex has received ten (10) returned class notices as undeliverable. (*Id.* ¶ 8.) As a result of conducting a skiptrace, 9 updated addresses were obtained, and notices were re-mailed to those Settlement Class Members via First Class U.S. Mail. (*Id.* ¶ 9.) Ultimately, there was one notice that was undeliverable with no forwarding address. (Id. ¶ 10.) Apex has not received any objections to the Settlement, has not received any disputes, and has not received any requests for exclusion. (*Id*. ¶ ¶ 11-13.). Apex therefore reports a participation rate of 100%. (*Id.* ¶ 14.)

Even without an objection to the requested attorney fees and costs, the Court has a duty to protect the rights of all parties, and to prevent abuses which might undermine the proper administration of justice. (*Howard Gunty Profit Sharing Plan v. Superior Court* (2001) 88 Cal.App.4th 572, 581.) Here, counsel argues the fees and costs are reasonable based upon the attorneys’ experience, the amount of time they have invested in managing the litigation and achieving the Settlement, and the risks involved in undertaking contingency-based litigation.

In *Laffitte v. Robert Half Int’l Inc*. (2016) 1 Cal.5th 480, the California Supreme Court addressed the appropriate method to use when awarding attorney fees in a common fund wage and hour class action. The choice of which fee calculation method to apply is generally within the discretion of the trial court. (*Id*. at 504.) Use of the percentage method to calculate a fee in a common fund case is permissible; and public policy supports the requested one-third percentage of the common fund. (*Id*. at 503.) Here, counsel achieved a $385,000.00 Settlement fund. The average payment to class members is $885.69 with the highest payout valued at $1,903.85. Class counsel undertook the representation at their own expense and risk with no assurances that they would receive any compensation. Class counsel shows that they are experienced with this type of litigation and have sufficient discovery and data to make an informed decision. Class counsel investigated and researched the claims in controversy, related documents and evidence, their defenses, and the relevant legal authorities. In addition, class counsel attended mediation and negotiated this Settlement. Based on the relevant factors, the requested attorneys' fees of one-third of the common fund are just and reasonable. The litigation costs and settlement administrator costs are reasonable and supported. The entire net settlement amount will be paid out to class members. The parties have complied with the Agreement and notice of the final approval hearing was properly given to the class members.

Having reviewed the documents submitted in conjunction with this motion, pursuant to Code of Civil Procedure section 382 and California Rules of Court, rule 3.769, the Court finds that the Settlement (including class member payouts, attorneys' fees and costs, settlement administrative costs, the enhancement payment/incentive award, and the PAGA payment) is fair, adequate, and reasonable and in the best interests of the class members. (*Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801.)

Plaintiff's motion for final approval is **GRANTED**. **The Mandatory Settlement Conference scheduled for 10/6/25 at 8:30 a.m. in Dept. 2 is vacated; an OSC re Status of Dismissal is scheduled for December 3, 2025, at 1:30 p.m. in Dept. 4**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Proposed Order.

HSU v DEL MUNDO

24CV47462

DEFENDANT'S DEMURRER TO FAC

Plaintiff Mike Sheng Con Hsu. ("Plaintiff") filed his Complaint arising out of a real property dispute with Defendants Leonardo Del Mundo and Angela Del Mundo ("Defendants"). Now before the Court is Defendants' demurrer to the First Amended Complaint ("FAC.")

The parties have sufficiently attempted to meet and confer.

I. FACTS

Allen Weeks and Barbara Weeks (hereinafter "Weeks") were the homeowners of the property at 11058 Slate Drive, San Andreas, California (hereinafter "Subject Property"). In May 1993, John W. Matthews and Diane Matthews (hereinafter "Matthews") were the homeowners of the property at 11034 Slate Drive, San Andreas, California (hereinafter "Neighboring Property")(FAC ¶ 8.) The Subject Property and the Neighboring Property are adjacent to one another and located at the end of Slate Drive. (Id. ¶ 9.)

On or about May 28, 1993, the Weeks obtained an easement for non-exclusive use for a 20 feet wide roadway on the Neighboring Property to be used by the Weeks ("Easement") (Id. ¶ 10.) The Easement is located on the eastern border of the Neighboring Property's land, closest to the Subject Property. (*Ibid.*) Plaintiff alleges that the Easement has been used as a driveway for access from Slate Drive to the Subject Property from 1993 to present day. (Id. ¶ ¶ 10,11.)

On or about August 10, 2017, Plaintiff purchased the Subject Property from the Weeks and continued to use the recorded Easement. (Id. ¶ 12.) In 2021, the Defendants purchased the Neighboring Property. (Id. ¶ 13.) In December 2022, Defendants built a wired fence on the recorded easement covering about 80% of the driveway reducing Plaintiff's ability to use the recorded easement. (Id. ¶ 14.) The wired fence is allegedly located directly on Plaintiff's driveway, leaving no space between the driveway and the fence. (*Ibid*.) Plaintiff has repeatedly requested that Defendants remove the fence, but Defendants have refused to do so. (*Id*. ¶ 15.)